

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
EDWIN BONILLA,

Plaintiff,

-against-

SUMMONS
INDEX NO.

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
SORIANO, TAX ID # 953431, INDIVIDUALLY AND
AS A POLICE OFFICER, AND POLICE OFFICER
JOHN DOE, IDENTITY, UNKNOWN, INDIVIDUALLY
AND AS A POLICE OFFICER,

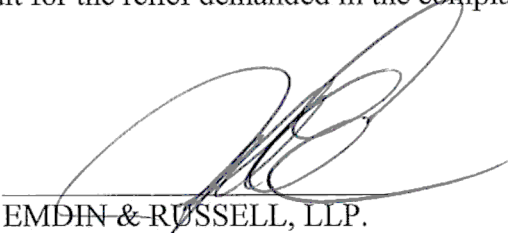
Plaintiff designates New York
County as the place of trial.
The basis of the venue is that
New York County is the place
where the cause of action
arose.

Defendants.
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service (30) days after the service is complete if the summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 6, 2018



EMDIN & RUSSELL, LLP.
Attorneys for Plaintiff
499 Seventh Avenue 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, New York 10007

Police Officer Soriano
Tax ID# 953431
Shield # 21546
c/o PSA 6
2770 Frederick Douglass Blvd
New York, NY 10039

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
EDWIN BONILLA,

Plaintiff,

-against-

VERIFIED COMPLAINT
INDEX NO.

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
SORIANO, TAX ID # 953431, INDIVIDUALLY AND
AS A POLICE OFFICER, AND POLICE OFFICER
JOHN DOE, IDENTITY, UNKNOWN, INDIVIDUALLY
AND AS A POLICE OFFICER,

Defendants.
-----X

The plaintiff, Edwin Bonilla, by his attorneys, Emdin & Russell, L.L.P., complaining of the
defendants respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief that at all times hereinafter mentioned, the defendant "City" its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York hereinafter referred to as "NYPD" including all the police officers thereof.
3. Upon information and belief, that at all times hereinafter mentioned, specifically on the 29th day of November, 2017, at approximately 4:00 p.m., Police Officer Soriano, Tax ID # 953431 hereinafter referred to as "Soriano" and Police Officer John Doe, hereinafter referred to as "Doe" identity presently unknown, were employed by the defendant, "City",

and/or “NYPD” as police officers, and were assigned to the PSA 6 precinct and at all times hereinafter mentioned acted in the capacity of police officers. Each is sued individually and as police officers.

4. Upon information and belief, “Soriano” and “Doe”, hereinafter collectively referred to as “the officers” were screened, interviewed, hired by the “City”, trained by the “City”, was retained by the “City”, and was investigated, monitored, supervised and/or disciplined by the “City”.
5. That the plaintiff is a resident of New York County and timely filed and served a Notice of Claim and a Supplemental Notice of Claim on the City.
6. The City acknowledged receipt of the notice of claim and held a 50(h) hearing of the plaintiff was held on May 2, 2018
7. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the defendant, City of New York and the said defendant has neglected or refused to make any adjustment or payment thereof.
8. That this action is commenced within one year and 90 days after the cause of action arose.
9. Upon information and belief at all times hereinafter mentioned, and specifically on the 29th day of November 2017, at approximately 4:00 p.m. Bonilla was lawfully present inside 2430 Adam Clayton Powell Jr. Blvd, New York, specifically the 12th floor thereat, hereinafter referred to as “the location”.
10. Upon information and belief “Soriano” and “Doe”, were also present at “the location” at approximately 4:00 p.m. on November 29, 2017, while acting in the scope of their employment as police officers, and employees of the “City”.

11. That “the officers,” at all relevant times hereunder, acted as police officers, and were required to follow the rules and regulations as contained in the New York City Patrol Guidelines.
12. That plaintiff was present to visit a friend, Anthony Morales, who resided at said location.
13. That on said date, and at said time and location Soriano and Doe approached the plaintiff and two others, and ordered them to put their hands up.
14. Neither the plaintiff, nor the other individuals were engaged in any criminal activity.
15. In response to the defendant officers’ inquiry, the plaintiff advised the officers that he was present to see his friend Anthony who resided on the floor, in apartment 12K.
16. The officers demanded everyone’s ID and plaintiff who did not possess it (he was in basketball gear) was summarily searched, handcuffed and arrested.
17. The officers refused to go to Anthony Morales apartment to verify the plaintiff’s presence and purpose at the location.
18. Upon information and belief the plaintiff was transported in handcuffs to PSA 6. At the precinct, the plaintiff’s telephone was removed, he was strip searched and placed in a cell.
19. The plaintiff was searched, fingerprinted and photographed while he was inside the precinct. The plaintiff was removed from the holding cell and brought to another area where he was asked about his knowledge about crimes in the area. However, the plaintiff had no information to provide the officer with and was returned back to the cell.
20. The plaintiff was held in the precinct against his will until approximately 6:30 p.m., when he was released with a Desk appearance Ticket (DAT). DAT # 806-00379 accused the plaintiff of having committed the crime of Penal Law Section 140.15 and lists Soriano as

the arresting officer. Upon information and belief the plaintiff was arraigned on the false charges of Penal Law 140.15 and 140.10 and entered a plea of not guilty.

21. On May 9, 2018 on motion/application of the District Attorneys Office New York County, charges were dismissed against the plaintiff. The plaintiff was prosecuted under docket number 2018NY001082.
22. The plaintiff was compelled to appear in court on numerous dates until all the charges were dismissed against him.
23. Plaintiff, was and is, at all times innocent of all charges and had committed no crime.
24. That this action falls within one of the exceptions of CPLR 1601.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR FALSE IMPRISONMENT**

25. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "24" with the same force and effect as if more fully and at length set forth herein.
26. That beginning on or about the 29th day of November, 2017, at the approximate hours of 4:00 p.m. at or near the "location", and continuing to the PSA 6 until approximately 6:30 p.m. on the same date, the defendants, and their agents, servants and/or employees intentionally handcuffed and imprisoned the plaintiff, without any just cause or grounds therefore and held him against his will under full force of arms.
27. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or any cause to believe that the plaintiff was guilty of any

crimes, or that the defendants had just cause to imprison the plaintiff.

28. The plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest or imprisonment by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.
29. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; in that the plaintiff was conscious of his confinement; the plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.
30. That by reason of the aforesaid false imprisonment and detention of the plaintiff, he was subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff has been otherwise damaged.
31. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AND AS FOR A SECOND CAUSE OF
ACTION FOR FALSE ARREST AGAINST ALL NAMED DEFENDANTS**

32. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "31" with the same force and effect as if more fully and at length set forth herein.
33. That on the 29th day of November, 2017 at approximately 4:00 p.m. the defendants, and their agents, servants and/or employees intentionally and knowingly arrested, handcuffed, detained and imprisoned plaintiff, without any just cause or grounds therefore, and held him against his will under full force of arms until he was released from the PSA 6

pct. at approximately 6:30 p.m.

34. That the plaintiff was falsely arrested, imprisoned and accused by the defendants, their agents, servants and/or employees of having committed the crime of criminal trespass.
35. That said arrest was caused by the defendants and their agents, servants, and/or employees, without any warrant or other legal process, without authority of the law and without any reasonable grounds or cause to believe that the plaintiff was guilty of any crime.
36. The plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.
37. The defendants, their agents, servants and/or employees, as set forth above, intended to seize, handcuff and arrest the plaintiff; the plaintiff was conscious of his arrest and confinement ; the plaintiff did not consent to his arrest and confinement; and the arrest and confinement was not otherwise privileged.
38. That by reason of the aforesaid false arrest and false charges filed against him, the plaintiff was subjected to great indignity, humiliation, and distress of mind and body and the said plaintiff has been otherwise damaged.
39. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL NAMED DEFENDANTS
FOR ASSAULT AND BATTERY:

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "39" with the same force and effect as if fully set forth herein.
41. Upon information and belief, on or about the 29th day of November, 2017, commencing at the approximate hour of 4:00 p.m. at the "location" and continuing to PSA 6, defendants "Soriano" and "Doe", while acting in the scope of their employment as police officers and as agents for the defendant the "City", without just cause or provocation searched, handcuffed, and strip searched the plaintiff.
42. That all said contact was committed without the plaintiff's consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such batter to the plaintiff.
43. That said acts occurred within the scope of the police officers' employment with the "City".
44. That by reason of the aforesaid intentional battery and assault, the plaintiff suffered and still continues to suffer from emotional trauma, and that he was otherwise damaged.
45. That by reason of the aforesaid assault and battery, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST DEFENDANTS FOR MALICIOUS PROSECUTION

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs

marked "1" through "45" with the same force and effect as if more fully and at length set forth herein.

47. The defendants filled out false police reports, and issued a DAT to the plaintiff for the purpose of prosecuting him for the charge of criminal trespass, a charge that they knew that he did not commit.
48. The defendants took such actions, knowingly and with a malice disregard for the truth, and did so with the intent to arrest and prosecute the plaintiff for a crime he did not commit.
49. The plaintiff was at all times innocent of any crime charged.
50. That due to the malicious prosecution, the plaintiff was caused to attend and appear at several court appearances at New York County Criminal Court.
51. On May 2, 2018 all criminal charges were dismissed against the plaintiff.
52. That by reason of the aforesaid malicious prosecution, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983 BY "SORIANO", AND "DOE"
EACH IN HIS INDIVIDUAL CAPACITY AND AS AN AGENT OF
THE CITY OF NEW YORK

53. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "52" with the same force and effect as if more fully and at length set forth herein.
54. That at all times hereinafter mentioned, Soriano and Doe, were employed by the defendant The City of New York and/or The New York City Police Department and each was acting under the color of his official capacity, and their acts and actions were performed under the

color of the policies, statutes, ordinances, rules and regulations of the City of New York.

55. That at all times hereinafter mentioned, Soriano and Doe, individually and collectively acted pursuant to orders and directives from defendant, The City of New York.
56. That during all times hereinafter mentioned, “the officers” acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that they were acting under the color and pretense of law, and engaged in the illegal conduct set forth in this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and/or Section 1986.
57. That the unlawful and illegal conduct of the defendants “officers” deprived the plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:
- a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure, under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
 - b) The right of plaintiff not to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.
58. That by reason of the aforesaid violations, including but not limited to: illegal search and seizure; seizure of plaintiff’s person, his false arrest and false imprisonment, battery and assault, intentional infliction of emotional distress; conspiracy to deprive the plaintiff of his

constitutional rights, failure to intervene and the malicious prosecution of the plaintiff, defendants , Soriano and Doe violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, The defendant officers violated 42 U.S.C. §1983, 1985, and 1986

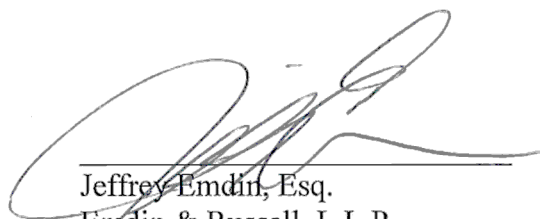
59. That as a direct proximate result of the defendants actions the plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

60. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he has expended and incurred divers sums of money in an effort to cure himself of said injuries, to extricate himself from the indignities and humiliation foisted upon him by the actions of the defendants..

61. That by reason of the aforesaid, the plaintiff, has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiff demands judgment against the defendants on the First through Fifth cause of action in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (5th causes of action only) and such further relief as to the court seems just and proper.

DATED: New York, New York
September 6, 2018

A handwritten signature in black ink, appearing to read 'JEFFREY EMDIN', is written over a horizontal line.

Jeffrey Emdin, Esq.
Emdin & Russell, L.L.P.
Attorneys for plaintiff
499 Seventh Avenue
Suite 12N
New York, New York 10018
(212) 683-3995

CLIENT VERIFICATION

STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

I, Edwin Bonilla, being duly sworn depose and say: I am the plaintiff in the within the action, I have read the foregoing Summons and Complaint, and know the contents thereof; the same is true to my own knowledge based upon my own knowledge and belief.

Edwin Bonilla
Edwin Bonilla, **Plaintiff**

Sworn to before me this
6 day of Sept, 2018

[Signature]
Notary Public

JEFFERY L. EMDIN
Notary Public, State of New York
No. 02EM5068790
Qualified in Westchester County
Commission Expires November 12, 2018 18

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

EDWIN BONILLA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT
POLICE OFFICER SORIANO, TAX ID # 953431, INDIVIDUALLY AND AS A POLICE
OFFICER, AND POLICE OFFICER JOHN DOE, IDENTITY, UNKNOWN, INDIVIDUALLY
AND AS A POLICE OFFICER,

Defendants.

SUMMONS AND COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP
Attorneys for Claimant
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

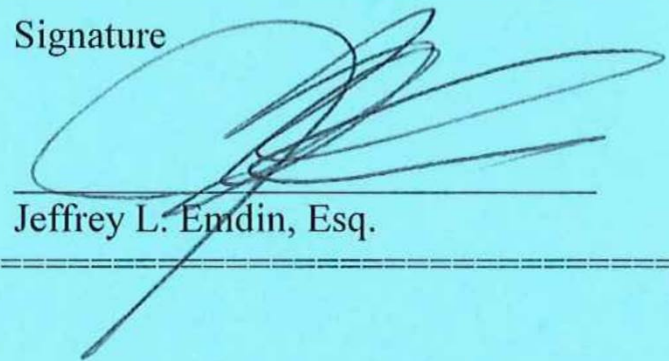
To: City of New York
Office of the Corporation Counsel
100 Church Street
New York, NY. 10007

Police Officer Soriano
Tax ID# 953431
Shield # 21546
c/o PSA 6
2770 Frederick Douglass Blvd.
New York, NY 10039

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: September 6, 2018

Signature



Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on

- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on